

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 20-14

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION, INC., *et al*

Respondents

**BRIEF *AMICI CURIAE* OF DIRECT CHASSISLINK, INC., FLEXIVAN
LEASING, LLC, AND INTERPOOL, INC. D/B/A TRAC INTERMODAL
REGARDING THE PETITION FOR RECONSIDERATION
OF THE COMMISSION'S FEBRUARY 13, 2024 ORDER**

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Pursuant to Rule 73 of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.73, and with the consent of the parties, Direct ChassisLink, Inc. (“DCLI”), Flexi-Van Leasing, LLC (“FlexiVan”), and Interpool, Inc. d/b/a TRAC Intermodal (“TRAC”), collectively the intermodal equipment providers (“IEPs”), respectfully submit this brief as amici. The IEPs believe that the brief will be helpful to the Commission’s consideration of the Petition for Reconsideration of the Commission’s February 13, 2024 Order (“Order”) filed by the Ocean Carrier Equipment Management Association and other ocean carrier parties (“OCEMA”).¹ The Commission previously granted the IEPs leave to file an amicus brief in this proceeding as to the Exceptions to the Initial Decision.²

I. INTEREST OF AMICI

Amici are three major U.S. chassis providers, who own almost all of the marine intermodal chassis assets that are the subject of the Order -- those made available in interoperable, multi-contributor chassis pools -- which are only a portion of the total chassis used in the United States. As the Order recognizes, neither these chassis nor the IEPs themselves are subject to the Commission’s jurisdiction, and the Commission cannot direct the IEPs to either take or not take any action as to chassis pools or any other matter. Order, at 63. The Commission is correct to recognize that it does not have jurisdiction over the IEPs or their conduct. Properly read, the Order appropriately leaves the IEPs free to manage their assets and chassis pools as they see fit without interference from the Commission, which has no jurisdiction over them.

The Petition for Reconsideration notes that the Order nonetheless purports to take action with respect to the pool that the IEPs collectively operate in the Los Angeles/Long Beach area (the

¹ Docket Entry No. 152. This brief will cite the filing as “OCEMA Pet.”

² Docket Entry No. 145.

“Pool of Pools” or “Pool”), independent of any direction from the ocean carriers, under rules established solely by the IEPs and not the ocean carriers or any other FMC-regulated parties. OCEMA Pet. at 18. The Petition also notes that even if the Commission had jurisdiction over the IEPs and their activities at the Pool of Pools, it lacks a basis in the record to impose any remedy, and indeed the Initial Decision itself noted that the record as to the Pool of Pools had been barely developed or presented by any of the parties. *Id.* (citing Initial Decision at 54). The IEPs agree that the record does not support any action with respect to the Pool of Pools, and that the incorrect suppositions in the Initial Decision that the Order adopted cannot substitute for the lack of evidence in the record. The Order’s misunderstanding as to how the Pool of Pools operates is secondary, however, to the more fundamental problem that the Commission lacks jurisdiction to regulate the Pool of Pools, either directly or indirectly. If the ocean carriers themselves are not responsible for operating the Pool of Pools, or setting the rules that govern how the Pool operates, any purported restrictions by the IEPs are simply beyond the Commission’s purview.³

Any suggestion that the IEPs must modify the Pool’s billing rules and/or restructure the Pool as a condition of the ocean carriers’ continued participation in the Pool would be a direct and unlawful interference in the IEPs’ business arrangements, and such impermissible regulation would also have the undesirable effect of *decreasing* the interoperability and efficiency of the Pool as well as the availability, in general, of intermodal chassis to serve the Los Angeles/Long Beach port complex. While the Pool of Pools accounts for less than 25% of the import containers moved in the Los Angeles/Long Beach area based on the IEPs’ data, it is an important resource for the

³ At several points in this proceeding, IMCC attempted to bring the Pool of Pools under the Commission’s jurisdiction by alleging that the Pool of Pools billing rules were dictated by ocean carriers. *See, e.g.*, Complaint, at 3, 26-27 (Docket No. 1). During discovery, the IEPs agreed to search for and provide any evidence that the Pool of Pools billing rules were dictated by the ocean carriers, as IMCC had alleged. There was no such evidence, and there have been no findings at any point in this case that the Pool of Pools rules are dictated by the ocean carriers.

customers who choose the Pool of Pools over the many other competitive alternatives available in the region. The IEPs have a strong interest in assuring that the Order is not misinterpreted to suggest that it requires reworking the Pool of Pools' billing rules or pool structure into a less efficient and/or less utilized chassis provisioning option.

II. THE ORDER CANNOT REQUIRE ACTION OR FORBEARANCE BY THE IEPS

The Order directs the Respondents in this proceeding, who are ocean carriers, an association of ocean carriers, and a now independent pool manager, to “cease and desist from engaging in the practices for merchant haulage the Commission has determined violate 46 U.S.C. § 41102(c) in the four test case regions addressed in this Order: Chicago, Los Angeles/Long Beach, Memphis, and Savannah.” Order, at 71. The Order goes on to state elsewhere that one of the challenged practices before the Commission “questions the reasonableness of merchant haulage restrictions at the Los Angeles/Long Beach Pool of Pools,” *id.*, at 31, and affirms a finding of an unreasonable practice where the “ocean carrier whose container is being moved selects the IEP for merchant and carrier haulage, and motor carriers must use that provider . . .” *Id.*, at 61. The Order thus states that the ocean carriers cannot take any action that limits a motor carrier’s ability to utilize the chassis provider of their choice for merchant haulage, and includes the Pool of Pools in this prohibition.

As noted in the IEPs’ prior amicus brief, however, the rules that apply to the Pool of Pools are established solely by the IEPs and are not imposed by the ocean carriers, either contractually or otherwise. The Commission does not have authority over the IEPs, but may only address the conduct of the parties the Commission regulates, such as the ocean carriers. The Order expressly states that the Commission can “not require action or forbearance by the IEPs who are outside the Commission’s regulatory authority under Section 41102(c),” and that any attempt to “structure injunctive relief” must “simultaneously avoid[] directing the IEPs to act or refrain from acting.”

Order, at 62-63. The IEPs thus believe that the Order cannot reasonably be interpreted as regulating the rules that the IEPs themselves establish at the Pool of Pools, without any direction by, or agreement with, the ocean carriers, who unlike the IEPs are subject to the Commission's jurisdiction.

III. ANY UNCERTAINTY THAT THE ORDER MIGHT APPLY TO IEP RULES AT THE POOL OF POOLS IS UNWARRANTED

Contrary to the IEPs' view that the Order cannot reasonably be read to require them to change their billing rules at the Pool of Pools, the ocean carriers' Petition suggests uncertainty as to how to respond to the Order with respect to the Pool of Pools. OCEMA Pet., at 18-22. This uncertainty may stem from the fact that the Order does not detail any course of action, other than that the ocean carriers cannot limit, or benefit from limiting, "choice" as the Commission has defined it. In the IEPs' view this uncertainty is unfounded.

To the extent that ocean carriers may believe that the Order could be read to mean that they cannot use the Pool of Pools unless the IEPs change its billing rules or its structure, such a conclusion would be inconsistent with the jurisdictional limit the Commission recognizes in its Order: "[s]ince Respondents depend on chassis use agreements with IEPs and do not own the chassis used for carriage or merchant haulage, any relief the Commission awards would need to consider those constraints and frame the relief to require meaningful compliance from the ocean common carriers but not require action or forbearance by the IEPs who are outside the Commission's regulatory authority under Section 41102(c)." *Order*, at 63. If the Order is read as requiring the IEPs to modify or eliminate their billing rules and/or change the structure of the Pool of Pools to keep their ocean carrier customers, the Commission would be directly "requir[ing] action or forbearance by the IEPs who are outside the Commission's regulatory authority" -- the

very result that the Commission has acknowledged it cannot require.⁴ Moreover, as discussed more fully below, any uncertainty as to what the Order requires in practice would create significant problems for the IEPs, the Pool of Pools, and chassis provisioning in Los Angeles/Long Beach.

IV. EVEN IF IT WERE WITHIN THE COMMISSION’S POWER TO DO SO, DIRECTING A SPECIFIC STRUCTURE FOR THE POOL OF POOLS WOULD BE PARTICULARLY INAPPROPRIATE AS IT IS JUST ONE OF MANY OPTIONS FOR PROCURING CHASSIS IN THE LOS ANGELES / LONG BEACH AREA

A. Chassis Provisioning In Los Angeles/Long Beach Is Robustly Competitive.

As the IEPs noted in their prior amicus brief, the Initial Decision, which the Order now affirms, stated that the “parties do not sufficiently explain how the Pool of Pools box rules work in their briefs,” but nonetheless sought to make findings about the Pool of Pools based on what “appeared” from the evidence of record. Initial Decision, at 54. Not surprisingly, these overt suppositions are often contrary to fact, for reasons set out in the ocean carriers’ exceptions and in the IEPs’ supporting amicus brief. Inexplicably, these points were entirely overlooked in the Order. The Order thus misapprehends both the chassis provisioning market in Los Angeles/Long Beach and how the Pool of Pool operates.

Significant misstatements of fact in the Order (and in the Initial Decision that the Order references as to the Pool of Pools) relate directly to the existence of motor carrier choice. For example, the Initial Decision stated, at 5, that “it appears that in the LA/LB region, the Pool of Pools is the exclusive chassis provider,” and the Order referred to “three major chassis providers

⁴ Commissioner Dye has since affirmed in Congressional testimony that the Commission does not have jurisdiction over intermodal chassis, stating that the Order in this proceeding “concerns chassis. But the chassis are not an issue in that case,” and explaining that “we [the FMC] don’t regulate chassis” and that “this is not an attempt to regulate chassis.... But the ocean carriers do have contracts with them [the IEPs]. The case was about the **ocean carriers’** restrictions, not in any way the chassis themselves.” Senate Commerce, Transportation and Science Committee, Hearing on Federal Maritime Committee Nominations (Feb. 28, 2024) (emphasis added).

who currently dominate the U.S. chassis market.” Order, at 4. The Pool of Pools supplies less than 25% of the chassis used at the Ports of Los Angeles and Long Beach for import container movements. In the Los Angeles/Long Beach area there are at least four competitive pools, one interoperable pool, a plethora of term lease and daily rental options, and a substantial number of chassis owned or otherwise controlled by motor carriers.

Once a shipper has chosen to move its shipment by merchant haulage rather than carrier haulage or merchant haulage exception, a motor carrier procuring a chassis for that move has many options. By and large, the marine terminals in Los Angeles/Long Beach operate in grounded fashion, meaning the containers are discharged from ships to the ground which enables the motor carrier to select a chassis before having the terminal operator place the motor carrier’s “pickup container” on top of the chassis. In the case of container returns to port, this same practice works in reverse, with the terminal operator lifting the container off a chassis, and placing it on the ground while the chassis remains connected to the motor carrier’s truck (allowing the motor carrier to use the chassis for another move, return it to a pool provider, or simply take it back to its garaging location in the case of motor carrier owned/controlled wheels).

The billing rules at issue are applicable *only* when a motor carrier with many options has selected the Pool of Pools as its chassis sourcing option. Any notion that motor carriers are in some way locked into an “exclusive” chassis provider for transporting any particular ocean carrier’s containers in that region is simply not true. There is nothing “exclusive” about the Pool of Pools.

The Initial Decision, and accordingly the Commission’s Order, also found that “[c]hassis are a necessity and substituting trucker-owned wheels is generally not economically feasible.” Order, at 45. This is directly contrary to the experience of the IEPs that the use of trucker-owned

or controlled wheels has been rapidly increasing to about 50% of the chassis used today. *See* OCEMA Pet. at 6-8 (citing record evidence as to the heavy and growing use of TOW at ports around the country, including estimates above 50%). The notion that the use of trucker-owned or controlled wheels is “generally not economically feasible” is thus also wholly unfounded. It is entirely feasible, as shown by the large and growing portion of the motor carrier market electing to use that option.

B. Sound Competition Regulation Does Not Impose Regulatory Mandates On Competitive Markets.

The Order also disclaims any need to evaluate whether healthy competition exists within the chassis provisioning market in evaluating the motor carriers’ claim of harm, and does not take issue with the facts of record showing a healthy market with many chassis provisioning alternatives. It notes that IMCC was “not required to demonstrate a detrimental impact on the chassis-provisioning market” to obtain the relief the Commission ordered. Order, at 63. The Order accordingly does not find any such harm, choosing instead to assert that “motor carriers’ inability to use a chassis provider they choose for a service they are responsible for providing” is sufficient harm. *Id.*⁵

As the IEPs noted in their prior amicus brief, at 8-10, asserted harm to an individual market participant is not sufficient under either the Commission’s precedent, or antitrust precedent in general, to support regulation of a competitively functioning market. The Order makes no credible or factually-supported findings that the practices at issue “generally restrain competition, and

⁵ It is unclear what the Order intends to mean in stating that motor carriers must be free to select their own chassis provider when engaged in a service “they are responsible for providing.” The motor carriers have many options as to where to obtain chassis, and there is no basis in fact or law for the Commission’s conclusion that, having chosen to avail themselves of the Pool of Pools among many options in pursuit of their commercial interest in hauling cargo for compensation, they can dictate the terms on which the Pool of Pools fulfills its responsibility to make those chassis available.

detrimentally impact transportation system efficiency.” Order, at 67. In fact, competition has greatly increased in recent years, as demonstrated by the increase in trucker-owned/controlled wheels and other chassis procurement options that motor carriers and shippers have at their disposal.

The Order’s result thus defies sound anticompetitive jurisprudence, which asks whether the potential benefits of the conduct at issue outweigh any anticompetitive effects. *See* IEP Amicus Br. at 8-10. Significant efficiencies exist today as a result of the Pool’s billing rules and structure, which permit the Pool to make its chassis available on an interoperable basis. Nonetheless, the Order makes no effort to assess these efficiencies, simply observing in passing that they cannot be significant since CCM, which operates interoperable pools under a very different structure than the Pool of Pools, grants exceptions to its own Box Rules. Order, at 28. The idea that allowing exceptions where feasible means that all exceptions are feasible is of course an entirely unsupported leap of logic, and does not apply to the Pool of Pools in any event, as the Pool of Pools does not allow exceptions to its billing rules for the precise reason that it would be highly inefficient to do so. And of course, the Order finds no anticompetitive effects as those are generally understood in both the Commission’s precedent and antitrust precedent generally.

The Commission rested its supposition of harm on one factor alone: motor carriers’ supposedly “lost opportunities to negotiate more favorable rates or service terms from a chassis provider of their choosing.” Order, at 66-67. Even assuming that reasonableness under the Shipping Act can be viewed from the lens of a single, intermediate party in the supply chain, the Order undercuts its own reasoning by citing the ALJ’s acknowledgment that “granting motor carriers the freedom to choose would not necessarily lower costs and might even lead to higher costs since motor carriers would not have the same bargaining power as ocean common carriers.”

Order, at 58. If the Order were construed as requiring the IEPs to change the billing rules and/or the structure of the Pool of Pools, the Commission would introduce harms into the chassis provisioning market where there were none before.

The Initial Decision concluded that “[t]he assignment of a default provider where a motor carrier does not have another preference serves the interests of the shipping public by ensuring that a system is in place to efficiently assign chassis to containers.” Initial Decision, at 42. The billing rules in the Pool of Pools reflect this efficiency, and are distinct from the rules in the CCM pools just as the pools themselves are distinct. The Commission does not explain why this efficiency is limited to where a motor carrier does not have a preference in chassis providers, or why a motor carrier’s preference should be allowed to override the interests of all other impacted parties and the shipping public, particularly in a competitive marketplace in which the Commission recognizes that the relief it is ordering could well *increase* chassis rates for merchant haulage.

V. THE IEPS’ POOL OF POOLS BILLING RULES WERE ADOPTED AS AN EFFICIENT MEANS TO FACILITATE INTEROPERABILITY AND ELIMINATING THEM WOULD SIGNIFICANTLY HARM THE EFFICIENCY OF THE POOL

The Order also misapprehends the nature of the Pool of Pools rules at issue. While acknowledging that the Pool of Pools “does not operate under CCM rules,” the Order states without any significant discussion or citation to the record that it “does operate under similar exclusivity rules.” Order, at 60. There are, however, significant differences between the CCM pools and their rules and the Pool of Pools and its rules. Unlike the CCM box rules that were adopted and enforced by the ocean carriers, the Pool of Pools billing rules are established by the IEPs and are independent of any “volume discounts based on both carrier and merchant haulage” that appear to be the subject of concern in the Order. Moreover, the billing rules are operationally necessary to ensure that IEPs can timely and accurately (a) identify the use of their equipment in a shared commercial space in

order to bill for that use, and (b) assign costs and other responsibilities among their individually-managed contributions when one participating pool makes use of a different participating pool's chassis, which happens thousands of times in a given month within Pool of Pools operations. Despite the IEPs' explanation of these considerations in their prior amicus brief, at 14-16, the Commission made no evident attempt to address them in its Order.

The IEPs established these rules to maintain the efficient interoperability of the Pool of Pools because billing for a pool made up of three separately managed IEP pools would otherwise be considerably more complicated, inaccurate, and expensive to implement and administer, and therefore would create significant inefficiencies in operating the pool. In addition, the Pool of Pools was originally conceived and implemented to address the requests of the Los Angeles/Long Beach port stakeholders for a more interoperable pool option in the Los Angeles/Long Beach port complex. Changing the structure of the Pool of Pools so that it addresses the billing choice issues of concern to the Commission would likely result in less or no interoperability between the on-terminal pools in the complex, thereby reintroducing the very issue the Pool of Pools was designed to alleviate.

Changing the Pool of Pools billing rules and/or pool structure would thus harm, rather than promote, the interoperability of chassis and the efficiency of the chassis provisioning system. The Pool of Pools ensures interoperability of the chassis system across multiple start-stop locations in the Los Angeles/Long Beach area, which requires billing rules to ensure that when chassis are used in the pool, IEPs are paid for the use of their assets, and that the IEPs can readily settle up with each other for the costs and obligations when one IEP utilizes (and thus bills its customer for the associated usage of) another IEP's contributed chassis. With three separately operated and managed pools that work together as a fully interoperable pool, motor carriers choosing to use the

Pool of Pools are free to select any physical chassis available to make a move. However, container identification systems at marine and rail terminals are incomplete and/or imperfect, so the IEPs in these pools devote significant time to “cleansing” the data they receive so that they can properly bill customers and settle up for interoperable use amongst themselves. Three separate billing systems with sufficient sophistication and organizational resources to administer the myriad of complex usage issues have been used by each contributing IEP, with each IEP also having established back-office operations to allow the chassis contributors to be fairly and accurately compensated when interoperable use occurs.

The billing rules currently in place use existing marine and rail terminal gate data to apportion usage in this multi-contributor pool structure. Determining party identities in some other way, or proliferating the number of parties and/or circumstances determining who may receive a chassis usage bill, even if technologically possible, would come at a significant administrative and logistical burden, both for primary customer billing and back-end chassis contributor settlements. IEPs would risk not being fully or fairly compensated in the collaborative but decentralized Pool of Pools venture. New layers of billing rules would require greater commercial information sharing among the IEPs, coordination of multiple systems to avoid cascading billing errors, and even deeper engagement of antitrust counsel to ensure ongoing compliance with pro-competitive laws, rules and regulations to which the IEPs already readily and vigorously attend.

Eliminating the current billing rule would require each IEP to perform at least three times as much data cleansing as it does at present, since it would have to deal with all carriers and not just its own carrier customers. There would also be an extended reconciliation process thereafter. Again, the IEPs cannot be sure without additional analysis that such a system would even be

feasible, but at the very least, such a system would take considerable time to develop, and would impose significant costs on the Pool of Pools.

These administrative challenges that the Pool of Pools billing rules are designed to address demonstrate that interoperable pools come with significant costs, and that there are clear tradeoffs between different chassis provisioning models. This is another reason they should continue to be allowed to develop in the marketplace, rather than being subjected to a single, regulated or mandated model, or crafted solely for the preferences of a vocal subset of another intermediary party in the supply chain, such as the IMCC petitioners. For the Pool of Pools, the IEPs again note that: (a) the billing rules were established by the IEPs and not by the ocean carriers for their own purposes; and (b) the billing rules do not result in a “subsidy” to carrier haulage. The costs and inefficiencies of being required to change those rules could potentially cause IEPs to simply abandon the interoperable pool entirely, which they are of course free to do.

Requiring the IEPs to eliminate the current Pool of Pools billing rules and/or change the pool structure to avoid losing their ocean carrier customers would thus significantly disrupt chassis provisioning at the Pool of Pools, thereby harming our nation’s supply chain functions that depend on the movement of that cargo. The Order rejects the ocean carriers’ assertion that the effect on the IEPs of the relief ordered by the Commission would be “direct, immediate, adverse, and dramatic” by asserting that the carriers “do not point to statistics or expert evidence indicating the likelihood that the scenario they paint... will actually occur.” Order, at 71. If the relief the Commission has ordered were construed to extend to requiring the billing rules of the Pool of Pools to be invalidated and/or the pool structure to be changed as a condition of the carriers using the Pool of Pools, then the effect on the IEPs and on the efficient and timely movement of cargo within the region would in fact be direct, immediate, adverse and dramatic. The IEPs would be

forced to choose between implementing new billing practices and/or a different pool structure (which at best, would introduce greater inefficiencies), and losing their ocean carrier customers at the Pool (which would ultimately result in the end of the only interoperable pool in the region).

VI. THE POOL OF POOLS BILLING RULES DO NOT CONFLICT WITH THE DOJ BUSINESS REVIEW LETTER

The IEPs also briefly address the Commission's adoption of the Initial Decision's supposed finding that the Pool's billing rules conflict with representations made to the Department of Justice ("DOJ") in a business review letter. First, the Commission is in error to suggest that the business review letter was somehow necessary to allow the Pool of Pools to operate. The Pool of Pools is a collaborative joint venture of the type that exists throughout the U.S. economy. While parties may seek business review letters to obtain an additional level of assurance as to their operations, they are in no way necessary to operate. Second, nothing in the letter discusses the subject of chassis choice in any way, or gives any indication that the DOJ would consider the Pool of Pools to be operating in violation of the letter because it does not allow for a concept of billing "choice" as the IMCC, and now the Commission, have defined it. Third, for the reasons set forth in the ocean carriers' brief and the IEPs' amicus brief, there is no basis for any assertion that the Pool of Pools is operating in an exclusionary manner when numerous competitive options are available in the Los Angeles/Long Beach area. Fourth, as also made clear in both the IEPs' earlier amicus brief and this one, there are numerous reasons that establishing billing "choice" within the Pool of Pools may undercut the pro-competitive benefits to the supply chain of continuing to operate the Pool of Pools in the first place. Finally, even the Initial Decision did not squarely find that the IEPs were operating in violation of the business review letter; it merely opined that if certain "policies were in place, IMCC's allegations regarding the Pool of Pools may not have been brought." Initial Decision, at 55.

The Commission's error on this point does not directly affect the IEPs because the Commission has no jurisdiction over the IEPs. As the Initial Decision acknowledged on this point, the "DOJ was addressing individual IEPs whereas this decision is focused on the practices of Respondents." Initial Decision, at 54. The IEPs address the matter to avoid any appearance that they are acquiescing in the Commission's supposition on this matter, which is both outside its jurisdiction and has not been given the serious consideration such a supposition or allegation deserves.

Respectfully submitted,

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March 21, 2024

CERTIFICATE OF SERVICE

I certify that, on March 21, 2024, a true and current copy of the foregoing was served via electronic mail on the following: Motion of Direct ChassisLink, Inc.; FlexiVan Leasing, LLC; and Interpool, Inc. d/b/a TRAC Intermodal for Leave to File a Brief *AMICI CURIAE* and provisionally filed brief, were filed electronically with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following:

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